

Dhulipalla Venkata Sundeep vs ,J on 19 December, 2025

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VS,J

CRP.No.133 of 2024

Reserved on 28.11.2025
Pronounced on 19.12.2025
Uploaded on 19.12.2025

APHC010021492024

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3333]

FRIDAY,THE NINETEENTH DAY OF DECEMBER
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SMT JUSTICE V.SUJATHA

CIVIL REVISION PETITION NO: 133/2024

Between:

1. DHULIPALLA VENKATA SUNDEEP,, S/O VENAKATA KOTESWARA
RAO, AGED 34 YEARS, R/O PLOT NO.5, FLAT NO.402, M.P
RESIDENCY, JKC COLLEGE ROAD, GUJJANAGUNDLA, GUNTUR-
522006

...PETITIONER

AND

1. DHULIPALLA TALASILA YAMINI SATYA, W/o Dhulipalla Venkata
Sundeep, D/o Talasila Ashok Kumar, Aged about 30years, R/o D.No.4-
20-38/1, 4th Lane, Navabharath Nagar, Guntur

...RESPONDENT

Petition under Article 227 of the Constitution of India,praying that in the
circumstances stated in the grounds filed herein,the High Court may be
pleased topleased to allow the revision while setting aside the Order dated
18.12.2023 in I.A. No.57 of 2023 in FCOP No.218 of 2021 on the file of the
Family Court - cum-XII Additional District Judge, Guntur and pass

IA NO: 1 OF 2024

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VS,J

CRP.No.133 of 2024

Petition under Section 151 CPC praying that in the circumstances stated

in the affidavit filed in support of the petition, the High Court may be pleased
pleased to stay all further proceedings in FCOP No.218 of 2021 by the
Hon'ble Court of the Family Court - cum-XII Additional District Judge, Guntur
pending the Civil Revision Petition and pass

IA NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated
in the affidavit filed in support of the petition, the High Court may be pleased
may be pleased to take on record the additional documents and facts stated
and pass

Counsel for the Petitioner:

1. S.V.S.S.SIVA RAM

Counsel for the Respondent:

1. N SRIRAM MURTHY

The Court made the following:

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ORDER:

This Civil Revision Petition is filed under Article 227 of the Constitution of India by the petitioner/husband challenging the order passed by the learned Judge, Family Court, Guntur, dated 18.12.2023 in I.A.No.57 of 2023 in F.C.O.P.No.218 of 2021, whereby, the Court below dismissed the application filed by the petitioner/husband under Section 151 of the Code of Civil Procedure (for short „CPC) seeking interim custody of the minor child every day during 10.00 a.m. to 05.00 p.m., till disposal of the main petition.

2. Brief facts of the case are as under:

(a) The petitioner/husband and respondent/wife married each other on 14.02.2015 as per Hindu rites and customs; during their wedlock, they were blessed with a child on 29.01.2020. It is the case of the petitioner/husband that the respondent/wife, right from the beginning, developed aversion against the petitioner/husband and used to pick up quarrels and on 08.04.2018, when the respondent/wife left the matrimonial house due to conjugal conflicts, the petitioner/husband issued a notice on

03.01.2019 after receipt of which, the respondent/wife rejoined the petitioner/husband. After the birth of the child, the petitioner/husband and his family members were not allowed to see the child and the petitioner/husband VS,J was asked by the respondent/wife to lead married life at the paternal house of the respondent/wife as illatom son-in-law.

(b) In spite of several requests, the petitioner/husband and his family were not allowed to enter into the paternal house of the respondent/wife. As such, the petitioner/husband issued a notice dated 12.12.2020 to the respondent/wife, but of no avail. The respondent/wife submitted a complaint before the Women Police Station, Guntur urban against the petitioner/husband which was registered as Crime No.57 of 2021 under Section 498A of the Indian Penal Code and under Sections 3 and 4 of Dowry Prohibition Act. In spite of strenuous efforts by the petitioner/husband, as the respondent/wife failed to lead a happy married life with the petitioner/husband, he filed F.C.O.P.No.218 of 2021 before the Court below for restitution of conjugal rights.

(c) In the said petition, the petitioner/husband filed an application under Section 151 of CPC requesting the Court below to grant interim custody of the minor child every day in between 10.00 a.m. and 05.00 p.m., until disposal of the main petition. The said application filed by the petitioner/husband was dismissed vide the impugned order dated 18.12.2023, however, the Court below permitted the petitioner/husband to visit the minor child on every second Saturday of the month, in the premises of the Court and VS,J the respondent/wife was also directed to produce the minor child before the Court premises on the stipulated day between 10.00 a.m. and 02.00 p.m.

3. Heard Sri. S.V.S.S. Sivaram, learned counsel for the petitioner and Sri. N. Sriram Murthy, learned counsel for the respondent. Perused the entire material available on record.

4. Admittedly, the marriage of the petitioner and the respondent took place on 14.02.2015 according to Hindu rites and customs; during their wedlock, they were blessed with a child on 29.01.2020. As few conjugal disputes arose between the petitioner and the respondent, they got separated and for restitution of conjugal rights, the petitioner has filed F.C.O.P.No.218 of 2021 under Section 9 of Hindu Marriage Act. In the said petition, the petitioner filed an application for interim custody of the child. Section 12 of the Guardians and Wards Act, 1890, deals with interim custody of a minor, which reads as under:

"12. Power to make interlocutory order for production of minor and interim protection of person and property.--

(1) The Court may direct that the person, if any, having the custody of the minor shall produce him or cause him to be produced at such place and time and before such person as it appoints, and may make such order for the temporary custody and protection of the person or property of the minor as it thinks proper.

(2) If the minor is a female who ought not to be compelled to appear in public, the direction under sub-section (1) for her production shall require VS,J her to be produced in accordance with the customs and manners of the country.

(3) Nothing in this section shall authorise--

(a) the Court to place a female minor in the temporary custody of a person claiming to be her guardian on the ground of his being her husband, unless she is already in

his custody with the consent of her parents, if any, or

(b) any person to whom the temporary custody and protection of the property of a minor is entrusted to dispossess otherwise than by due course of law any person in possession of any of the property."

5. Time and again, the Hon ble Supreme Court, in catena of judgments held that in matters pertaining to custody of a child, the primary and paramount consideration is the welfare of the child and that the view of one spouse alone should not be taken into consideration. The Hon ble Supreme Court in *Yashita Sahu v. State of Rajasthan*¹, while dealing with custody of a child in a matrimonial dispute, held at paragraphs 20 to 24 as follows:

"20. It is well settled law by a catena of judgments that while deciding matters of custody of a child, primary and paramount consideration is welfare of the child. If welfare of the child so demands then technical objections cannot come in the way. However, while deciding the welfare of the child it is not the view of one spouse alone which has to be taken into consideration. The courts should decide the issue of custody only on the basis of what is in the best interest of the child.

21. The child is the victim in custody battles. In this fight of egos and increasing acrimonious battles and litigations between two spouses, our experience shows that more often than not, the parents who otherwise love their child, present a picture as if the other spouse is a villain and he or she (2020) 3 SCC 67 VS,J alone is entitled to the custody of the child. The court must therefore be very wary of what is said by each of the spouses.

22. A child, especially a child of tender years requires the love, affection, company, protection of both parents. This is not only the requirement of the child but is his/her basic human right. Just because the parents are at war with each other, does not mean that the child should be denied the care, affection, love or protection of any one of the two parents. A child is not an inanimate object which can be tossed from one parent to the other. Every separation, every re-union may have a traumatic and psychosomatic impact on the child. Therefore, it is to be ensured that the court weighs each and every circumstance very carefully before deciding how and in what manner the custody of the child should be shared between both the parents. Even if the custody is given to one parent the other parent must have sufficient visitation rights to ensure that the child keeps in touch with the other parent and does not lose social, physical and psychological contact with any one of the two parents. It is only in extreme circumstances that one parent should be denied contact with the child. Reasons must be assigned if one parent is to be denied any visitation rights or contact with the child. Courts dealing with the custody matters must while deciding issues of custody clearly define the nature, manner and specifics of the visitation rights.

23. The concept of visitation rights is not fully developed in India. Most courts while granting custody to one spouse do not pass any orders granting visitation rights to the other spouse. As observed earlier, a child has a human right to have the love and affection of both the parents and courts must pass orders ensuring that the child is not totally deprived of the love, affection and company of one of her/his parents.

24. Normally, if the parents are living in the same town or area, the spouse who has not been granted custody is given visitation rights over weekends only. In case the spouses are living at a distance from each other, it may not be feasible or in the interest of the child to create impediments in the education of the child by frequent breaks and, in such cases the visitation VS,J rights must be given over long weekends, breaks, and holidays. In cases like the present one where the parents are in two different continents effort should be made to give maximum visitation rights to the parent who is denied custody."

6. It can be understood from the aforesaid observation of the Hon ble Apex Court that the interest and welfare of the child is of paramount consideration and the well settled principle of law is that the welfare and interest of the minor child shall be considered, but not the wish of either of the parents or the technicalities. It is also well settled that any matter concerning a minor has to be considered and decided only from the point of view of the welfare and interest of the minor. In dealing with a matter concerning a minor, the Court has a special responsibility, and it is the duty of the Court to consider the welfare of the minor and to protect the minor's interest.

7. Keeping in view the said principle of law, this Court, on 18.09.2025, in order to have a discussion with the petitioner and the respondent, directed them to appear before this Court along with the minor child. Accordingly, on 30.10.2025, the petitioner as well as the respondent along with their minor child appeared before this Court and in-camera proceedings were conducted at 02.15 p.m.; during the course of the proceedings, this Court interacted with the petitioner and the respondent and as well as their minor child. The child expressed his interest towards his father i.e. petitioner and specifically stated that he likes to be in the company of both the petitioner and the respondent.

VS,J Further, as this Court felt that Court premises would not be a suitable place for the child to spend some time with the petitioner as directed by the Court below, taking into consideration the interest and welfare of the child, the parties were directed to come up with an alternative place where the petitioner can meet the child; upon such proposal, the respondent agreed to bring her child to Phoenix mall, Guntur on 08.11.2025, so that the petitioner can spend time with the child from 10.00 a.m., to 05.00 p.m. Accordingly, a direction was issued to both the parties.

8. Thereafter, when the matter was listed on 14.11.2025, both the parties have stated that pursuant to the orders passed by this Court, they along with their child went to Phoenix mall, Guntur on 08.11.2025 and spent time with their child from 10.00 a.m. to 05.00 p.m., but, however have expressed their dissatisfaction over such meetings in future and requested this Court to pass appropriate orders. Upon considering the same, this Court has adjourned the matter and dispensed with the presence of the parties.

9. Now, a perusal of the impugned order dated 18.12.2023 would go to show that, the Court below, observed that the minor child who is aged less than 5 years as on the date of order shall ordinarily be in the custody of the mother. However, as per Section 6(a) of the Hindu Minority and Guardianship Act, 1956, the natural guardian of a Hindu minor is the father and then the mother, provided that the custody of a minor who has not completed the age VS,J of five years shall ordinarily be with the mother. However, the Court below has permitted the petitioner to visit the child once in a month i.e. on every second Saturday in the premises of the Court and has directed the respondent/mother to produce the minor child on every second Saturday between 10.00 a.m., and 02.00 p.m., before the Court premises. During the course of arguments, it is brought to the notice of this Court that the petitioner is now residing in Guntur, in such a case, this Court is of the opinion that a single visit per month would not be sufficient to develop a relationship between the petitioner and the minor child who likes to be in the company of the petitioner and the respondent and would not be best in the interests of the child.

10. In view of the above, till disposal of F.C.O.P.No.218 of 2021, the petitioner is permitted to visit the minor child two days in a month i.e. on 2nd and 4th Saturdays of every month from 10.00 a.m., to 05.00 p.m. The respondent shall permit the petitioner to pick up the minor child from her residence at 10.00 a.m., and the petitioner shall drop the child back at the residence of the respondent on or before 05.00 p.m., on 2nd and 4th Saturdays of every month. This said interim arrangement is made to see that a cordial relationship develops between the petitioner and the minor child. It is made clear that during the said course of meeting between the petitioner and the child, the respondent shall not interfere in any way.

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11. It has to be noted that the minor child is now aged above five years and hence, the Court below is directed to dispose of F.C.O.P.No.218 of 2021 at the earliest, preferably within a period of one (1) year, keeping in view the Section 6(a) of the Hindu Minority and Guardianship Act, 1956 and also the law laid down by the Hon ble Supreme Court in Yashita Sahu v. State of Rajasthan(referred supra).

12. In the result, this civil revision petition is disposed of. There shall be no order as to costs.

Consequently, miscellaneous applications, pending, if any, shall also stand closed.

____ JUSTICE V. SUJATHA Date:19.12.2025 Gss